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Translation of Despatch of Commissioners CH'ÊN LANPIN, MACPHERSON *and* HUBER, *reporting to the Tsung-li Yamên the results of their enquiry into the condition of Chinese in Cuba.*

The Commissioner CH'ÊN, and the Commissioners of Customs MACPHERSON and HUBER, address this memorial in reply:—

On the 10th day of the 10th moon of the 12th year of T'UNGCHIH [29th November 1873] was received the communication of the Yamên to the effect that "for the enquiry in regard to "Chinese emigrants to the Spanish possession of Cuba, CH'ÊN LANPIN, the officer in charge of "the Educational Mission abroad, has been selected, that Mr. MACPHERSON, Commissioner of "Customs at Hankow, and Mr. HUBER, Commissioner of Customs at Tientsin, are likewise "appointed and are to accompany him; that this arrangement has been sanctioned by an Edict "of the 30th day of the 7th moon [21st September], that the head of the Commission is to "await in the United States the arrival of his associates, and that they are thence to proceed "together to their destination, where they are to institute an honest and complete enquiry, of "the results of which a full report is to be supplied, as a guide for subsequent action."

On the 12th day of the 10th moon [1st December], the receipt of these instructions was in the first instance acknowledged.

On the 26th day of the 12 moon [12th February 1874], Mr. HUBER arrived in the United States, and on the 3rd day of the 1st moon of this year [19th February], the deputed officer CH'ÊN LANPIN with him departed for Cuba, Havana being reached on the 29th day of the same moon [17th March], where apartments were hired in the hotel in which Mr. MACPHERSON was already residing.

On the 2nd day of the 2nd moon [19 March], (being thus united) we visited the Captain General the Governor of Havana, the official members of the Commission of Colonization, and afterwards the Consular Representatives of Great Britain, France, Russia, the United States, Germany, Sweden and Norway and Denmark, Holland, Austria, Belgium, and Italy.

On the 3rd [20th] we commenced an enquiry at the barracoon of Mr. Ibañez.

On the 4th [21st] we commenced an enquiry in the dépôt.

On the 5th [22nd] we continued the enquiry in the barracoon.

From the 6th [23rd] until the 11th [28th] inclusive we continued the enquiry in the dépôt.

During the 13th, 14th and 15th [30th, 31st and 1st April] the enquiry was prosecuted in the jail.

During the 17th and 18th [3rd and 4th April] the plantation Las Cañas was visited.

On the 22nd [8th] we proceeded to Matanzas, where, during the following days, the enquiry was prosecuted in the dépôt, prison and in the plantations "San Cayetano," "Concepcion" and "Armonia."

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On the 28th [14th] we proceeded to Cardenas, where, during the following days, we prosecuted enquiries in the dépôt, prison and the plantations "Esperanza," "Recreo" and "San Antonio." A visit was also paid to the adjacent town of Cimmarones.

On the 3rd day of the 3rd moon [18th], we proceeded to Colon, where, during the following days, we prosecuted enquiries in the dépôt, prison and in the plantations "España" and "Flor de Cuba."

On the 6th [21st] we proceeded to Sagua, where, during the following days, we prosecuted enquiries in the dépôt, prison and in the plantations "Santa Anna," "Santa Isabella" and "Capitolis."

On the 9th [24th] we proceeded to Cienfuegos, where, during the following days, we prosecuted enquiries in the dépôt, prison and in the plantations "Juniata" and "Candelaria."

On the 13th [28th] we proceeded to Guanajay, where, during the following days, we prosecuted enquiries in the dépôt and prison, returning to Havana *vid* the town of San Antonio.

On the 17th [2nd May] we proceeded to Guanabacoa, and on the same day prosecuted enquires in the Regla and Santa Catalina sugar-warehouses.

During these investigations, the hours of visiting the dépôts and prisons were always fixed by the local officials, and plantations also were only visited after the assent of the latter had been obtained. Besides, however, in the places where we stayed, as well as on the road, independent enquiries were instituted.

All investigations of Chinese were conducted verbally and in person by ourselves. The depositions and petitions show that $\frac{8}{10}$ths of the entire number declared that they had been kidnapped or decoyed; that the mortality during the voyage from wounds caused by blows, suicide and sickness proves to have exceeded 10 per cent.; that on arrival at Havana they were sold into slavery,—a small proportion being disposed of to families and shops, whilst the large majority became the property of sugar planters; that the cruelty displayed even towards those of the former class is great, and that it assumes in the case of those of the latter, proportions that are unendurable. The labour, too, on the plantations is shown to be excessively severe, and the food to be insufficient; the hours of labour are too long, and the chastisements by rods, whips, chains, stocks, &c., &c., productive of suffering and injury. During the past years a large number have been killed by blows, have died from the effects of wounds and have hanged themselves, cut their throats, poisoned themselves with opium, and thrown themselves into wells and sugar caldrons. It was also possible to verify by personal inspection wounds inflicted upon others, the fractured and maimed limbs, blindness, the heads full of sores, the teeth struck out, the ears mutilated, and the skin and flesh lacerated, proofs of cruelty patent to the eyes of all.

On the termination of the contracts the employers, in most cases, withhold the certificates of completion, and insist on renewal of engagements, which may extend to even more than 10 years, and during which the same system of cruelty is adhered to; whilst if the Chinese refuse to assent, they are taken to the dépôts, whence in chains, and watched by guards, they are forced to repair roads, receiving no compensation for their labour, undergoing a treatment exactly similar to that of criminals in jail. Afterwards they are compelled to again enter the service of an employer, and sign a contract, on the completion of which they are once more taken to the

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dépôts; and as this process is constantly repeated, a return home, and an attempt to gain a livelihood independently, become impossible.

Moreover, since the 2nd moon of the 11th year of HIENFÊNG [March–April 1861] the issue of Letters of Domicile and Cedulas has ceased, rendering liability to arrest universal, whilst those possessing these papers are constantly, be it on the street or in their own houses, called upon to produce them for inspection, or are even exposed to their being taken away, or torn up, and to themselves being carried away to the endless misery of a dépôt.

Of all these facts the depositions and petitions furnish detailed evidence.

Our stay in Cuba, commencing on the 29th of the 1st moon [17th March], ended on the 23rd of the 3rd moon [8th May]. Almost every Chinese met during this period was, or had been, undergoing suffering, and suffering was the purport of almost every word heard; and these men were seen by us all, and these words were heard by us all.

1,176 depositions have been collected, and 85 petitions, supported by 1,665 signatures have been received, of which copies and (English) translations are appended.

Replies to the Memorandum of queries sent by the Yamên in the 12th moon, and translations of Tables of Chinese embarked for and arrived at Cuba, received from the British Consul and the Commission of Colonization, of the Regulations now applicable to the Chinese in Cuba, of the Instructions issued to Masters of vessels conveying Chinese to Cuba, of eight Forms of Contracts, and of certain Tables of Chinese population prepared by the Commission of Colonization, also accompany this Despatch.

T'UNGCHIH, 13th year, 9th month, 11th day [20th October, 1874].

True translation.

(Signed) A. MACPHERSON,

(Signed) A. HUBER,

Commissioners of Customs.

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This part contains the English version of the Replies to the Queries supplied by the Tsung-li Yamên for the guidance of the Commission during its investigation in Cuba.

陳 蘭 彬	(Signed)	[Chinese Signature.]
馬 福 臣	(„)	A. MACPHERSON.
吳 秉 文	(„)	A. HUBER.

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Amoy, Su A-'hai (蘇阿海) and 11 others were kidnapped, that T'ang-chien (唐 鍵) and 22 others were decoyed, that Lin Shêng (林 盛) and 10 others were the victims of various snares tendered to them after they had gambled and lost, and that 'Huang Shui-t'ou (黃水頭) and 5 others emigrated voluntarily; that of those who sailed from Swatow, Ch'ên A-kuei (陳阿桂) and 4 others were kidnapped, that Chang A-lin (張阿林) and 27 others were decoyed, and that Lo Fu-ch'ung (羅富崇) and 11 others emigrated voluntarily; that of those who sailed from Canton and Whampoa Yang Shih-fêng (楊石鳳) and 16 others were decoyed, that Ch'ên A-ch'iu (陳阿秋) and 7 others were the victims of snares tendered to them after they had gambled and lost, and that Liang A-shêng (梁阿盛) and 11 others emigrated voluntarily; that the 2 who sailed from Hongkong, Li San-mou (李三茂) and 1 other, were decoyed; that of the 5 who sailed from Manila one, Wei Lêng (魏冷), was kidnapped, whilst Wang Wei (王爲) and the remaining 3 were decoyed; and that the one man who sailed from Shanghai, Chang Kuei-t'ing (張桂廷), was decoyed. Furthermore Chang Jung-chi (章榮記) deposes that foreigners decoyed to Macao from P'ingyang (平陽) in the prefecture of Wênchow (溫州) in the province of Chêhkiang more than 10 men, and Yü A-chao (余阿照) also deposes that foreigners speaking Chinese decoyed him to Macao, and there entrapped him into signing a contract, as if it were merely on behalf of another, temporarily absent.

It thus appears that of the Chinese labourers who have proceeded to Cuba, 8 or 9 of every 10 have been conveyed there against their will. The entire number who sailed for that island from the 27th year of TAOKWANG to the 3rd moon of the 13th year of T'UNGCHIH, is, according to the statement prepared by the British Consul General, Havana, 142,422, of whom 43,273 sailed from Amoy, Swatow, Hongkong, Canton, Whampoa, Annan and Manila, whilst from Macao between the 27th year of TAOKWANG and the end of the 5th year of T'UNGCHIH were shipped 63,455, and between the latter date and the 3rd moon of the 13th year of T'UNGCHIH 35,694. These latter shipments took place in violation of the provisions of the communication attached to the Emigration Convention of the 5th year of T'UNGCHIH, by which Macao is excluded from the localities at which the engagement of labourers is permitted; whilst, as proved by the depositions and petitions, the circumstances that have attended the introduction into Cuba of the majority of the Chinese are a breach of the 10th clause of the Spanish Treaty of the 3rd year of T'UNGCHIH, which is to the effect that Spain agrees not to afford shelter to Chinese criminals, or to *decoy* or *sell* any subjects of China.

II.

DO THEY SIGN AGREEMENTS?

In the Emigration Convention of the 5th year of T'UNGCHIH, it is provided that the Emigration Agencies at the ports are to be inspected at will by officers of the two nations interested, and that these functionaries are also to be present at the time of signing contracts and of embarkation. The 11th clause also provides that Chinese under 20 years of age are not to be permitted to

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emigrate unless they produce a written authorization from their parents sealed by the official of the place of residence of the latter, or—in the event of it being impossible to procure such a document,—an authorization from the local official alone. In the 10th clause of the Spanish Royal Decree of 1860 it is likewise stated, that minors cannot sign contracts without the sanction of their parents or guardians. Of the Chinese now in Cuba the great majority were brought there by fraud or violence in order to be sold, and whether of age or minors either received no contracts, or were entrapped into accepting them, or constrained by force to sign them, or induced to affix their names as if doing so merely on behalf of others; whilst the documents themselves were in some instances delivered in the barracoons and in others on board ship. None of the indicated officers were present when contracts were signed, and none of the specified authorizations were produced, so that provisions prescribed by both China and Spain were violated.

The petition of Chu Chi-hsün (朱箕訓) and 10 others states, "we were decoyed into "foreign houses at Macao, in which we were forced to sign contracts, after which we were placed "on board ship, and conveyed to Havana." 'Ho A-ying (何阿英) in his petition states, "I "was confined in an upstairs room until I consented to sign a contract." Lo A-pao (駱阿寶) in his petition states, "I was compelled to sign the contract." Ku Ch'iao-hsiu (古橋秀) in his petition states, "I was beaten with great severity, and the suffering being unendurable I "could not but accept the contract, and with suppressed grief proceed on board, where were 600 "others, all wronged in a like manner." The petition of Chêng A-mou (鄭阿茂) and 89 others states, "we signed no contract, and after the lapse of a month were compelled to go on board "ship." The petition of Yeh Fu-chün (葉福君) and 52 others states, "after entering, the "gates were closed by a foreigner, and as all exit was prevented we perceived how we had been "betrayed, but there was no remedy; in the same chambers were more than 100 others, most of "whom passed their days and nights in tears, whilst some were dripping with blood,—the result "of chastisements inflicted on account of a suspected intention of escape, or of a declaration of "their unwillingness, when interrogated by the Portuguese inspector. The barracoon was of "great depth, and, at the time of punishment, as an additional precaution to prevent the cries "being overheard, gongs were beaten, and fireworks discharged, so that death even might have "ensued without detection; and witnessing this violence, there was no course open to us but "assent, receiving at the moment of embarkation a document, which we were told was a contract "for eight years." Jên Shih-chên (任世貞) remarks in his petition, "by what right can our "bodies be disposed of, without the signed authorization of our parents?" The petition of Li Chao-ch'un (李肇春) and 165 others states, "though years,—in some instances more than ten,— "have elapsed since we were decoyed here, our families know not whether we are alive or dead "or where we are."

'Ho A-hsien (賀阿先) and 235 others in their depositions declare that they signed their contracts under compulsion; 'Huang Ch'ao-ping (黃潮炳) and 192 others declare that contracts were handed to them in the barracoons; Kuo Chan (郭占) and 116 others declare that the contracts were handed to them on board ship; Wên Chang-t'ai (文長泰) and 231 others declare that the contracts were given to them at the time of inspection, by a Portuguese official. Su A-'hai (蘇阿海) and 42 others declare that no contracts were received by them; Li A-wu (李阿五) and 1 other declare that they were induced by fraud to sign contracts. Hsien Ch'êng-ku (洗成古)

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declares, "as I was unwilling, the contract was given to me by force, and I was not allowed to "speak." 'Hu A-pao (胡阿保) declares, "at the time of inspection I declined to sign the contract; "the Portuguese official then forcibly seized my hand and when it had marked the paper took "the latter away." Li A-pao (李阿保) declares, "a mark was made with my hand on a contract, "and I was then given 10 cash." Lo A-êrh (羅阿二) declares, "after I had been locked up "during half a month the contract was given to me." Chu Chieh (朱揭) and 2 others declare that they signed contracts without having been inspected by any official. Yang A-wang (楊阿旺) declares, "another man signed a contract on my behalf." Huang A-yu (黃阿友) declares, "when "16 years old, I was induced to sign a contract, being told that I was merely doing so for another "man." Wang A-jung (王阿榮) and 1 other declare that they signed contracts when 18 years old. Ch'ên 'Hua (陳華) declares, "I was decoyed when 11 years old." Ch'ên A-wu (陳阿五) declares, "I was decoyed when 12 years old." Ch'ên A-fu (陳阿福) declares, "when 11 years old "I received a contract in a barracoon." Lin A-ch'iu (林阿秋) declares, "I signed a contract on "board ship and was paid two strings of cash." Liu I-ling (劉益齡) declares, "on embarking "I was placed in confinement, and was given by the interpreter a contract made out in the name "of Wang A-man (王阿滿)." Chang 'Huo-hsiu (張火秀) declares, "in the barracoon I saw "that those who refused to go abroad were beaten on the cheeks, and placed under privies, so that "consent was the only course open to me." Wang T'ing-kuei (王廷貴) declares, "I was "decoyed, and declined to embark; I then was placed under a privy, and was told that if I "persisted in my refusal I would never be permitted to come out, and, thus, I was constrained "to assent." Liang A-shêng (梁阿盛) declares, "I saw those who refused to go abroad confined "inside privies." Ch'ên Lung (陳龍) declares, "when inspected by the Portuguese official, I "declared that I was unwilling to proceed abroad. The interpreter then told me that if I persisted "in my refusal I would be confined under a privy for three years." Lin A-lien (林阿連) declares, "as I was unwilling to proceed abroad, the head of the barracoon told me, that unless I consented "I would certainly be placed under a privy." Chang Lin-an (張林安) declares, "I ran away "from a barracoon, was captured, and placed under a privy." 'Hung A-i (洪阿異) declares, "after having been confined in a barracoon three days, I was given a contract made out in the name "of a native of Sanshui (三水), 'Ho A-yu (何阿有)." Ch'ên Shao-yen (陳少巖) declares, "on "board I was given a contract made out in the name of Chêng Ts'ai (鄭材)." Wu Lien-shêng (吳聯勝) declares, "I was forced to accept a contract and to sign the name of Wu A-chung "(吳阿忠)." Wu Yao (伍耀) declares, "on board, a contract was given to me, made out in the "name of Ch'ên A-ssŭ (陳阿四)." Mai A-kuei (麥阿貴) declares, "the contract was given to "me on board ship. It was made out in the name of Ch'ên A-fu (陳阿福)." Liang A-chang (梁阿掌) declares, "the name on my contract was Huang Fu (黃福)." Ts'ui Lan-fang (崔蘭芳) declares, "the contract given to me was made out in the name of Liu Ch'i (劉七)." Yeh Tung-'ho (葉東合) declares, "the contract was in the name of Yeh Tung (葉東)." Hsiao Mêng-hsing (蕭孟興) declares, "when inspected by the Portuguese official a contract made out "in the name of Lin Fu (林福) was given to me." Li Ts'an (李燦) declares, "the name on "my contract was 'Huang Hsing (黃姓)." Yeh A-hsi (葉阿錫) declares, "after embarkation I "was given a contract made out in the name of Ch'ên Ch'ing-yün (陳慶雲)." Li A-shêng (黎阿勝) declares, "the name on my contract was Ch'ên A-hsing (陳阿興)." Liang A-shêng

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"The food also was insufficient." Lu Chung (盧鍾) deposes, "as the food and water were both "insufficient, we all created an uproar. The master shot the two leaders, and we were all severely "flogged." Li A-'hui (李阿會) deposes, "I was hungry and asked for food; four sailors then forced "me into a prostrate position and flogged me, the scars resulting from the wounds being still "visible." Wang Wei (王爲) deposes, "one man being unable to eat the beef, asked that salt "should be allowed him (in its place). He was refused and threw himself into the sea." Huang Tso (黃坐) deposes, "five men were killed on account of disturbances on board." Hsieh A-tso (謝阿作) deposes, "we were not allowed on deck to obtain a little fresh air, and many died "from the effects of the close confinement." 'Huang A-fang (黃阿芳) deposes, "11 men "committed suicide. The day after I embarked we were all ordered on deck, and foot irons were "attached to 173 physically strong men, besides 160 men were stripped and flogged on their "naked persons with rattan rods." Wang T'ing-kuei (王廷貴) deposes, "24 men leaped "overboard and two poisoned themselves with opium. They committed suicide because they "had been decoyed and were unwilling to go abroad." Lai A-shih (賴阿時) deposes, "we "all were being taken away against our will, and created an uproar. The master upon this "directed the sailors to strike us with chains and 80 men were killed." Chu Ts'un-fang (朱村房) deposes, "one day suffering from extreme thirst I took a little water; and for "doing so was struck by the master 25 blows on each hand." Wu Lien-shêng (吳聯勝) deposes, "I myself saw a native of the Hwa (花) district kicked to death by the master for "asking for medicine when sick: 36, of whom I was one, were tied up, beaten, and placed "in irons from which we were only released on the vessel arriving at a British colony." "Ch'ên A-ch'ing (陳阿慶) deposes, "two sick men went on deck to relieve nature, and were "kicked to death by the sailors." P'ang A-tung (龐阿東) deposes, "if through not under- "standing the language the work was not well performed, we were beaten, and one of our "number threw himself overboard." Liao A-ping (廖阿炳) deposes, "for drinking a small "cup of water I was dragged on deck and flogged." Lo 'Huai-ch'ang (羅懷昌) deposes, "one "man was beaten so severely by the master, that, the suffering being unendurable, he threw "himself overboard." Lo Hsien-fa (羅先發) deposes, "one man was beaten to death on board; "five men committed suicide; and two were shot because, having nothing to eat and suffering "from hunger, they asked for food." Chang Chêng-kao (張正高) deposes, "the master was "very cruel; some died from thirst, others from flogging, others on the point of death but not "dead were thrown overboard, and others, their sufferings being unendurable, cast themselves "into the sea." Hsiao To (蕭多) deposes, "the food and water were insufficient; flogging was "constant, and two men committed suicide, whilst two others were so severely kicked by the sailors "on account of smoking, that they died from the injuries thus caused." Li Pao (李報) declares, "two men suspected by the master of mutinous intentions were hanged." Ch'ên 'Hua (陳華) deposes, "the master beat to death four men." Ch'ên Ch'i-kuang (陳其光) deposes, "a native of "Kiaying (嘉應) who created an outcry because he objected to his queue being cut off, was shot "by the master, whilst others were flogged until their flesh was lacerated." Chên A-lin (甄阿林) deposes, "the master was cruel. When thirst forced us all to go on deck in search of water, he "regarding us as mutinous, discharged firearms and killed 40 men." Yü Kuan (徐觀) deposes, "the mate displayed excessive cruelty; suspecting that I and 15 others entertained mutinous

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"had committed no offence." Lin A-kou (林阿狗) deposes, "the administrator, when "intoxicated, would strike me on the head." Chou Liu (周六) deposes, "as the adminis- "trator acted with great cruelty, I ran away; I was pursued by hounds and on being "captured two of my fingers were cut off." Ts'ui An (崔安) deposes, "I saw a man "killed for simply striking an overseer." Ch'ên A-shun (陳阿順) deposes, "the adminis- "trator constantly inflicted floggings and incited the hounds to bite." Wang Ching (王敬) deposes, "I found the chaining and flogging so unendurable, during the first six months "of my service, that I attempted suicide by cutting my throat, and a month elapsed before "the wound was healed." Lu Shêng-pao (盧盛保) deposes, "monthly, the $4 were not "issued, and for a service of one year and a half, only $51 were paid me." Wang A-jui (王阿瑞) deposes, "I was sold to a brick-kiln, and during eighteen months received no wages." 'Han Yen-p'ei (韓炎培) deposes, "my master did not furnish me with food. He issued to me "orders for edibles to be handed to the plantation shop. These orders were regarded as money, "and their amount being placed to my debit, my earnings for the entire eight years were thus "deducted." Ts'ui F'êng-lin (崔登林) deposes, "on one occasion I went out to make certain "purchases. On my return I was severely flogged, and was compelled to work in irons during "three months." Yang Ch'i-man (楊其滿) deposes, "on one occassion, I was beaten with great "severity and it was not until I was so gravely injured that I vomited blood, that the blows "ceased. I also saw a flogging inflicted on another man, of such severity that finding the pain "unendurable, he leaped into a well." Yeh A-yao (葉阿耀) deposes, "for refusing to eat maize "I was almost beaten to death. My entire person was lacerated; on it there was not a single "spot uninjured." Li A-ta (李阿達) deposes, "on one occasion I received 200 blows, and "though my body was a mass of wounds I was still forced to continue labour." Li San-mou (李三茂) deposes, "on two occasions my trowsers were removed, and I was beaten with a rattan "rod on my naked person." Wu A-san (吳阿三) deposes, "the Chinese in chains were beaten "severely if they did not imitate the cries of sheep and dogs."

VIII.

Are the Agreement Stipulations carried out?

Eight contracts issued at various dates between the 3rd year of Hienfêng and the 12th year of T'ungchih have been examined. Of these only one—that has never been employed,—is framed in accordance with the provisions of the Emigration Convention of the 5th year of T'ungchih.

The stipulations of the remainder are in most respects alike. Among these is a clause to the effect that labour cannot be enforced during more than 12 hours of the 24, whilst enquiries have shown that as much as 21 hours are exacted; another to the effect that Sunday shall be a day of rest, whilst it is ascertained that in the great majority of cases, no cessation of labour takes place on that day; a third prescribes that the daily rations shall consist of 8 taels' weight of salt meat and 2½ lbs. of miscellaneous articles of food, all to be of good quality, whilst

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"received 24 blows, so that skin and flesh were lacerated; yet this chastisement is to be regarded "as a light one. Chains are attached to our feet and we are goaded on with whips. If the "administrator is of a kind disposition these fetters may be removed in two months, if he is not, "they have to be worn six months. The chain extends from the neck to the ankles and may "weigh 40 catties. I have myself been thus chained on three occasions. My offence was telling "the administrator that, fed only on potatoes, I did not possess strength for my work. During "the entire year we are not permitted to wash our clothes. If, when at leisure, we do so, and are "seen by the negroes, we are chained and beaten. A man, too, was in chains eight months for "simply effecting a purchase at a small shop in the neighbourhood." 'Ho A-pa (何阿八) deposes, "on one occasion my master who observed me making a cigarette, ordered four negroes "to seize my hands and feet, and I was flogged with a rattan rod so severely that my flesh was "lacerated and the bones became visible. I was besides placed in the stocks and was again "beaten with a whip by the administrator." T'an Fa (譚發) deposes, "for buying rice, the "administrator on one occasion confined me in irons during two weeks, and fined me one month's "wages." Liu A-ping (劉阿丙) deposes "I was beaten for the slightest slowness, even for "relieving nature." Pu A-hou (卜阿厚) deposes, "if thought to be absent too long when "relieving nature the administrator and the white overseers would incite four large dogs, and men's "feet have thus been bitten so severely that they were unable to walk." Chiang A-ch'i (江阿起) deposes, "we were constantly struck and hounds were also incited to bite us." Liu Hsin-fa (劉新發) deposes, "on one occasion I was flogged with such severity that my shoulder "was broken, and that the blood drawn out of my back dripped over my entire body." Chung A-tai (鍾阿代) deposes, "the owner of the plantation himself broke my arm by a blow." Ch'ên Hsiang (陳香) deposes, "I was transferred to a sugar plantation, where during five years "I suffered great hardships. As I was flogged daily, I asked my employer why, as my tasks were "well performed, I was thus chastised; and he replied that he had bought me not to labour but "to be beaten." Yüan A-ts'ung (阮阿聰) deposes, "my master was very cruel. He beat all "without discriminating between those who worked well and the inefficient, and even when we "by chance met him on the road he would deal us a few blows." Lo A-êrh (羅阿二) deposes, "I wished to redeem myself by payment of the price originally paid for me, but my employer not "only refused, but also kept me in chains during one month, and flogged me severely." Sung Hai (宋海) deposes, "at present there are here 40 Chinese who though recently arrived and "ignorant of the language work in chains." Yang A-ch'ang (楊阿昌) deposes, "my master "acts with great cruelty. For one day's sickness he deducts a dollar." 'Ho P'ei-ch'i (何沛麒) deposes, "I was sick during six months and my wages during an entire year were deducted."

XIV.

Does the Law provide for an Appeal by Coolies from the Punishment authorised to be used by Employers?

It is provided in the 71st Article of the Spanish Royal Decree of 1860, that the Chinese shall in every case "possess the right of making complaint to the Protector, regarding any wrong

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" done to them by their employers, whether such wrong consists in the infliction of punishments " without sufficient cause or the imposition of unauthorised penalties, or in the breach of any of " the provisions regulating the treatment of them." Thus, in the event of employers abusing the disciplinary powers conferred on them, the right of preferring charges is accorded to the sufferers, but numerous as the latter are, the proportion that has been enabled to obtain redress or even make complaint is very small.

Lin Kuei-hsing (林貴興) deposes, " on the plantation, though wrongs of every kind have " to be endured, there are no means of preferring complaints, as all egress is prohibited." Liu A-lien (劉阿連) deposes, " the overseer flogs with great whips until skin and flesh are lacerated; " thus wounded we still are forced to labour and no one is able to go out to make an accusation." Li Yü (李禹) deposes, " as when I was at work on account of not understanding the language " I was beaten with a cowhide whip, and found the chastisement unendurable, and as I saw " that another man poisoned himself through being unable to support the cruelties, I preferred " a charge before the officials. They gave no heed to my accusation. I afterwards was " chastised even more severely, and after the completion of my contract term I embodied in " a petition addressd to the Captain General, a statement of the wrongs endured by Chinese in " Cuba, but this also met with no notice." Chu Chia-hsien (朱甲先) deposes, " as I saw Liu " A-k'o (劉阿科) receive 150 lashes dealt with severity, I, in indignation, proceeded to Havana " in order to prefer a charge against the overseer. The official gave no heed to me, but sent " me back to the plantation, where an exactly similar chastisement was inflicted upon me. " The flogging continued from 8 to 10 A.M., and an hour afterwards Liu A-k'o (劉阿科) threw " himself into a sugar caldron." Liang En (梁恩) deposes, " one Liang Yu-shêng (梁有勝) " being beaten to death by the administrator, I and three others made a complaint to the officials, " but as the owner's agent presented them with $100, and the administrator sent them four " negroes, the charge was unheeded, and I was sent back to the plantation where I had to work " with chained feet during an entire year. I was afterwards transferred to another plantation " appertaining to the same proprietor, when, as I had finished my term of eight years, I applied " for a certificate of completion. I waited a year labouring in the customary way, and at its close " left, intending to seek redress from the authorities; but the clerk of the plantation presented " money to the guards, and I was arrested on the plea that I was attempting to escape, and I was " delivered back to the plantation, where during four months I had to labour in foot irons." Lin A-san (林阿三) deposes, " I was flogged without any cause. It depended on my master's " caprice, on his good or bad humour. I did not dare to complain to the authorities, because " such a course only resulted in being chained and flogged with even greater severity." Wang A-ts'ai (王阿才) deposes, " I constantly received injuries from flogging, I resolved to prefer a " charge before the officials. My intentions were detected, and I was forced to work in irons " during nine months." Li Tai (李帶) deposes, " one of us, able to speak Spanish, told our " employer that rice was the customary diet of Chinese, and that, whilst at Macao it had been " distinctly understood that Sundays were to be days of rest, the existing practice was different. " Our employer gave way to anger, regarding these words as too daring; and afterwards our " companion fell sick and was sent to the hospital where in a few days he died." Chou Tê-hua (周德華) deposes, " they broke my finger merely because I was unable to express myself in

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"which work is continued up to midnight. We are struck and flogged, and out of our party of "more than 200 men, only over 80 remain." The petition of Wang Hua (王 華) and of 16 others states, "we have to labour at night nearly until 1 A.M., and we have to recommence work "at 4 A.M., and our bodies and our bones cause us so much pain that we cannot work with great "activity." Ch'ên Tê-ming (陳 德 明) declares in his petition, "I was sold to a sugar plantation "where I endured every hardship. I and the others got up at 4 A.M. and worked until 1 A.M." The petition of Lin A-ch'ing (林 阿 慶) and 1 other states, "we are in the service of a railway "company and have to work night and day. The overseer is very cruel, but whatever he alleges "to the superintendent is believed by the latter. Those who have completed their eight years "are not allowed to go away. We are constantly flogged by the superintendent at the instiga- "tion of the overseer. We get up at 4 A.M., and cease work only at 1 A.M. On Sundays we do "not rest." The petition of Yeh Fu-chün (葉 福 君) and 52 others states, "when sold to sugar "plantations, we had to work night and day, having only three hours' sleep." The petition of Ch'ên Ku (陳 古) and 2 others states, "on the sugar plantation we toil daily from 3 A.M. until "midnight." The petition of P'an To-li (潘 多 利) and 2 others states, "we have to labour 19 or "20 hours out of the 24."

The depositions of T'ang Chien (唐 建) and 170 others testify that they have laboured on the sugar plantations from 3 A.M. until midnight, and that on Sundays similar hours were enforced. The depositions of Chang Chao (張 照) and 121 others testify that they have laboured on sugar plantations from 4 A.M. until midnight, and that on Sundays similar hours were enforced. The depositions of Wên A-chao (温 阿 照) and 20 others testify that they have laboured on sugar plantations from 2 A.M. to midnight. The depositions of Ch'ên Wan-shêng (陳 萬 生) and 47 others testify, that they have laboured on the sugar plantations from 3 A.M. until 11 P.M. The depositions of Ch'ên Ch'ih (陳 池) and 27 others testify that they have laboured on the sugar plantations from 4 A.M. till 11 P.M. The depositions of Ch'ên Ting-hsien (陳 鼎 賢) and 6 others testify that they have laboured on the sugar plantations from 3 A.M. until 9 P.M. The depositions of Tsêng Erh-ch'i (曾 貳 齊) and 7 others testify that they have laboured on the sugar plantations from 2 A.M. until 11 P.M. The depositions of Li Ho (李 合) and 8 others testify that they have laboured on the sugar plantations from 4 A.M. until 10 P.M. The depositions of Chang K'ai (張 開) and 6 others testify that the they have laboured on the sugar plantations from 5 A.M. until midnight, and that the same hours were enforced on Sundays. The depositions of Su A-'hai (蘇 阿 海) and 1 other testify that they have laboured on the sugar plantations from 4 A.M. until 9 P.M., that during the collection of the crop the same hours were enforced on Sundays, but that at other times work ceased on that day at 9 A.M. Liu A-san (劉 阿 三) deposes, "on the plantation I rested during half the day on Sunday." The depositions of Ch'ên Lin (陳 林) and 3 others testify that on the sugar plantations on Sundays they ceased labour at 9 A.M., but recommenced it from 4 P.M. to 6 P.M. The depositions of Kuo Chan (郭 占) and 1 other testify that on certain sugar plantations, during the collection of the crop, the ordinary hours were enforced on Sundays, but that at other times work ceased at 8 A.M. Lin A-i (林 阿 亦) deposes, "on the plantation in the 24 hours I rested two hours "and a half." Wu Ch'ieh (吳 且) deposes, "on the plantation I got up at 6 A.M., and ended "work at midnight." Li Yu (李 游) deposes, "on the plantation I commenced work at

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"questions were addressed to us." Yeh A-ling (葉阿靈) deposes, "in the 10th year of T'UNG-"CHIH, a negro murdered a Chinese. The negro was a great favourite of our master, and the dead "body was removed and buried. Certain Chinese having discovered the place of burial, our "master induced the authorities to chastise them. He also intimated that they had committed "the crime, and they were in consequence tried and eight men were sentenced to imprisonment." Ch'ên Lin-shan (陳林山) deposes, "as, after the completion of our contract term, the adminis-"trator flogged us with great severity, we all, 30 in number, became much discontented. On "information being given to him of our having expressed indignation at his cruelty he placed "more than 10 in irons, and having bribed the authorities, procured the presence of certain of "the guards, who shot four. One of the four was a native of the district of Kaoming (高明), "by name Li A-ch'i (李阿起), one was a native of the Kaoyao (高要) district, by name "A-chao (阿照), one was a native of the prefecture of Hweichow (惠州), by name Li Kêng-yu "(李庚有), and the fourth was a native of the Sinhwei (新會) district, and was named "A-hsing (阿興)."

The following instances of injuries were verified by personal inspection. Scars of old wounds on the bodies of:—

Yüan A-ts'ung. . . (阮阿聰)
Tsêng Jung-ch'ing . . (曾榮慶)
Wên A-chao . . . (温阿照)
Li A-'hou . . . . . (黎阿侯)
Liu A-chi . . . . (劉阿記)
Ch'ên A-'hung . . . (陳阿洪)
Li A-k'ai . . . . (李阿開)
Liang A-'hung . . . (梁阿洪)
Mo A-hsün . . . . (莫阿訓)
Ho A-hsien . . . . (賀阿先)
Liang A-kuei . . . (梁阿貴)
Yen A-yu . . . . . (顏阿有)
Liang A-lin . . . (梁阿林)
Lo A-chi . . . . . (羅阿紀)
'Ho 'Hai . . . . (何 海)
Lin Chao-chin . . . (林照金)
Chung Shêng . . . (鐘 聲)
Kao A-lun . . . . (高阿倫)
Han Ch'ing-to . . (韓慶鐸)
T'an Lien-chin . . . (譚連進)
Liu A-t'ing. . . . (劉阿廷)
Chang Shih-chên . . (張式震)
Hung A-i . . . . (洪阿異)

Scars on the heads of:—

Ch'ü A-ping . . . (區阿炳)
Shên T'ai-kao . . . (沈泰高)
Miu Yang-chiao . . (繆陽嬌)
Ch'ên A-shên . . . (陳阿深)

Scars on the head and face of:—

Chu Ts'ai-fang . . (朱村房)

Scars on the head and arms of:—

'Ho A-fa . . . . . (何阿發)

Scars from wounds self-inflicted in the hope of death, on the throats of:—

Huang A-ping . . (黃阿炳)
Ch'ü Tan-k'o. . . . (屈但殼)
Lin Lun-mei . . . (林輪美)

Actual wounds on the bodies of:—

Wu A-ch'in . . . (伍阿琴)
Lan A-mu . . . . (藍阿穆)

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Actual wounds on the heads of:—

Chang Shêng . . . (張　生)　　Yu A-t'ien . . . . (余阿田)

Actual wounds on the face of:—

Wu A-fang . . . . (吳阿芳)

Actual wounds on the chest of:—

Ch'ên Chung-hsiu . (陳忠秀)

Actual wounds on the legs and thighs of:—

Wang Ta-ch'êng . . (王大成)　　Ch'ên I-yu . . . . (陳乙有)

Ts'ai A-lu . . . . . (蔡阿魯)　　Ch'ü Chieh-k'ang . . (區祖康)

Lin Tzŭ-yu . . . . (林滋有)　　Li A-lü . . . . . (李阿呂)

The loss of the left ear by Liang A-yu (梁阿有), deliberately cut off by his master.

The loss of a portion of one ear by Huang A-shêng (黃阿盛).

The loss of sight by Li A-ta (李阿達), the disease of the eyes having commenced immediately after a flogging, during which 200 blows were administered.

The injury caused to one eye of Liang A-'hua (梁阿華).

The loss of two teeth of Ch'ên P'ei-ch'ang (陳佩長).

The fracture of the arm of the *hsiu-ts'ai* Ch'ên Shao-yen (陳少巖), of Li A-'hui (李阿會), Yüan Ai-shan (袁藹山) and Ch'ên A-'hai (陳阿海).

The maiming of the right hand of Lo Kuan-hsiu (駱觀秀) by a blow from a knife between the thumb and forefinger.

The loss of four fingers by Liu A-lin (劉阿林), deliberately cut off.

The fracture of the fingers and toes of Li 'Hung (李洪) and Li 'Ho (李何).

The fracture of one leg of Lu Shêng-pao (盧盛保).

The loss of the use of one ankle by Wu A-kuang (吳阿光), the result of wearing fetters.

The maimed condition of the feet of Hsü A-fên (許阿芬), from the same cause.

XVIII.

SOME COOLIES ARE INDUSTRIOUS MEN, WHO EMIGRATE WILLINGLY TO BETTER THEMSELVES, AND WHO WORK CHEERFULLY AND WELL; SOME COOLIES EMIGRATE WILLINGLY, BUT BEING BAD CHARACTERS, DO SO TO ESCAPE THE RESULTS OF GAMBLING AND CRIME, AND CARRY WITH THEM THEIR BAD HABITS; SOME COOLIES ARE "KIDNAPPED," BEING STUPID FELLOWS, AND NEVER CAN WORK INTELLIGENTLY; SOME COOLIES, CLEVER FELLOWS, ARE INDUCED TO EMBARK UNDER FALSE PRETENCES, AND ON FINDING THEMSELVES DECEIVED AND ENTRAPPED, BECOME DESPERATE—THEIR DESPERATION BEING REGARDED BY THE EMPLOYER AS DEFIANCE, MUTINY, DISOBEDIENCE, &C. ALLOWING THAT AMONG THE COOLIES THERE ARE REPRESENTATIVES OF ALL THESE CLASSES TO BE FOUND, WHAT ARE THEIR FATES DURING AGREEMENT-TERM RESPECTIVELY?

Industrious men who work willingly and well, can support themselves at home, and do not emigrate voluntarily: "Born in China and never in want of food or clothing, we, like our

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remain, is deprived of freedom of choice, for as is remarked in the petition of Lin Chin (林金) and 16 others, "the foreign authorities consider the Chinese as a source of wealth for themselves. "To whom then can we apply for redress?"

XXII.

If he elects to stay, what follows?

The 1st clause of the Regulations, dated September 1872, prescribes that, "every Chinese "immigrant arrived after the 15th February 1861, is compelled to leave the island on completion "of his contract, or should he desire to remain, to re-contract himself in the capacity of "immigrant labourer or workman, according to the provisions of Article VII. of the Royal Decree "of 1860, and of Articles 51 and 52 of the Instructions of 1868, and of the Decree of 18th "October 1871." As, however, the smallness of the wages, aggravated by the necessity of purchasing food and clothing in addition to those supplied on the place of service, renders it impossible to lay by sufficient for the cost of passage, and as the latter is not supplied by the employers, the rules now in force retain on the island under the control of the dépôts, all Chinese, and those who stay cannot be regarded as following a course suggested by free election. Thus the petition of Tsêng A-shih (曾阿石) remarks, "I pray you "to aid me in escaping from a life-time slavery, by procuring for me my freedman's papers, "a boon for which I shall ever be grateful." Liang A-tê (梁阿德) observes in his petition, "my hope is to be rescued by you, so as to find it in my power to obtain a situation "in another locality, where in two or three years I may save sufficient for the expenses of my "return." Again, the depositions of Ch'ên T'ung (陳通) and 1 other state that they were forced to pay monthly $3 to foreigners who acted as their godfathers or padrinos, and that passports for a return home were refused to them by the officials. Hu A-ju (胡阿如) deposes, "though I held a certificate of completion of service, issued by my master, it was necessary to in "person hand to the officials three ounces ($51) when applying for a cedula." The depositions of Wên Ch'ang-t'ai (文長泰) and 6 others also declare that for their cedulas they each expended $51. The depositions of Wu Yüeh (吳越) and 1 other declare that they each expended $8 in the purchase of cedulas. The depositions of Hsü Shu (許數) and 1 other declare that they each expended $102 in the purchase of cedulas. Fêng A-hsiu (馮阿秀) deposes, "I purchased a cedula from the secretary of the officials for $59½." Chou Jun-fêng (周潤勝) deposes, "I paid $17 for my cedula; although on it was distinctly noted that it was issued "gratis." The depositions of Wang Chêng-fu (王正福) and 2 others declare, that they each purchased their cedulas for $100. The depositions of Ts'ui Têng-lin (崔登林) and 2 others declare that they each expended $68 in the purchase of a cedula. Kuan A-nêng (關阿能) deposes, "I, in the first instance, purchased my cedula for $100, "and besides annually for its renewal I have to pay $1 or $2 or $5 or $10." P'an Yo-hêng (潘岳衡) deposes, "I expended $90 in the purchase of a cedula." Li Shun

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XXVIII.

ARE THERE CHINESE IN THE COUNTRY? TO WHAT CLASSES DO THEY BELONG? WHAT IS THEIR CONDITION, AND WHAT DO THEY SAY ABOUT IT?

Chinese are disposed of, but not in large numbers, to tobacco and coffee estates, to farms and market gardens. The great majority however are employed on sugar plantations, and it is there that the greatest wrongs are inflicted upon them, wrongs far graver than those endured in the cities.

The following extracts will indicate the condition of those working in the country districts. Ch'ên T'ung (陳通) deposes, "on all plantations there are jails, in the smallest of which 12 "or 15 can be confined." Ch'ü Tan-k'o (屈但壳) deposes, "in the day-time we work in irons, "and at night are confined in the stocks. On the plantation there are three cells, one of iron "and two of wood. In the former 30 individuals are constantly placed, and in the others several "tens are as often detained." Ch'ên Chin (陳金) deposes, "for reporting myself sick, I "received 200 blows on the back, which became lacerated. I was forced to work as usual on the "same day and at night the wounds were rubbed with salt and lime-juice." Li Yün (李閏) deposes, "I have seen four men shot dead on the plantations." Huang Ch'ao-ping (黃潮炳) deposes, "on a plantation I had to work in irons during three years, and I never knew why this "chastisement was inflicted." Liang Tao-'han (梁道漢) deposes, "on the cane fields there "are ground fleas which penetrate and lay eggs under the skin, and eat and corrupt the flesh, "and no cure is possible; and as no shoes are furnished, we are constantly unable to move our "feet." Ko Ch'i (柯溪) deposes, "on the expiration of the eight years, I worked for another "term of two years. My savings out of my wages I had entrusted to my master, and as he joined "the insurgents, I lost all I had laid by." Ch'ên Kou (陳苟) deposes, "I had saved by self-"denying economy $ 100. These were stolen from me. The thief was discovered, but he "divided with the administrator what he had taken." Wu A-hsiang (伍阿祥) deposes, "I "was sold to a plantation belonging to one of the local officials, who for six months' service only "paid me two months' wages, and forced us to catch squirrels for food in order to save the cost "of dried beef." Wên A-nêng (温阿能) deposes, "there were men confined in the jail of "the plantation, but they were removed in anticipation of the visit of the Commission." Chang Hui (張惠) deposes, "on the plantation there is at present a man who was beaten two "days ago. He is now locked up so that he may not be seen by the Commission, as it is feared "that he may be interrogated." Ts'ai Hsi (蔡細) deposes, "Passing the gates of a plantation, "I was seized by white men, who robbed me of what I had with me, and of my cedula. I "complained to the officials, and the result was that I was confined in the Cardenas dépôt." Ch'ên A-yu (陳阿有) deposes, "passing a plantation, I was seized by certain of the overseers, "who robbed me of my cedula." Ch'ên A-'ho (陳阿和) deposes, "I gave my cedula to the "head of the gang for renewal, but he ran away and took it with him, and I was seized and "placed in a dépôt. The *ti-pao* (capitan de partido) would sell me another cedula, but I do not "possess the necessary funds." Ho A-kuan (何阿官) deposes, "I handed my cedula to my "master for safe custody, and going out without it, was arrested. I was then forced to work in

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XXXI.

HAS THE SPANISH GOVERNMENT LEGISLATED IN FAVOUR OF THE COOLIE? HAS IT MADE LAWS FOR HIS GENERAL WELFARE AND PROTECTION? ARE THE LAWS EFFECTIVE? IF NOT, TO WHAT EXTENT AND IN WHAT RESPECTS INEFFECTIVE, AND WHY?

The 31st clause of the Spanish Royal Decree of 1860, directs that the Captain General shall be the chief protector of Chinese, and that he shall exercise this function in the various jurisdictions, by means of his delegates, the Governors and Lieutenant Governors, who, in turn, shall be aided by the Captains of districts; the 10th clause provides that minors can only contract themselves with the consent of the persons under whose charge they are; the 12th clause provides that vessels carrying Chinese shall be supplied with a quantity of water and sound food, proportioned to the number of individuals who have to be conveyed and the distance to be traversed; the 21st clause provides that Chinese, the rights of the importer over whom have been forfeited (through certain violations of Regulation), shall be at liberty to contract themselves; and the 22nd that should they not desire to do so, the Captain General shall exact from the consignee a sum sufficient to defray the cost of the re-exportation of the entire number; the 32nd clause provides that in their relations with the tribunals of justice, immigrants shall be defended in the lower, by the Attorney of the Court of Justice of the Peace, and in the higher, by the Attorney General; the 33rd clause provides that under no circumstances whatever and notwithstanding any stipulations to the contrary, shall employers exact from Chinese, on an average, more than 12 hours' work; the 54th, that when a contract empowers the employer to distribute, in the manner most convenient to his interests, the number of hours agreed upon, it shall be understood that no more than 15 hours can be exacted in one day; and the 69th, that the duration of an imprisonment imposed by an employer cannot exceed 10 days.

These provisions, characterised by a care for the welfare and protection of the Chinese, have however never been observed, and are in practice null, whilst on the other hand, the restrictions resorted to by the dépôts in order to enforce renewal of contracts, and to render continuance of labour unavoidable, are daily becoming more oppressive. Thus the petition of Chien Shih-kuang (簡仕光) and 69 others complains of the baneful laws and evil deeds of Spain; and that of Li Chao-ch'un (李肇春) and 165 others alleges that, "within the last few years, the planters "have, in concert with the authorities and the Commission of Emigration, enforced very unjust "rules." These statements certainly indicate that the laws in favour of the Chinese have not been effective, and the following extracts will explain the cause of this failure.

The petition of Chang Luan (張鑾) and 30 others states, "again, officials here are "often merchants, others are completely under the influence of the planters, and all ignore the "outrages committed, and do not even make an inquiry into the cases of suicide or murder. "Of late years, too, the issue of cedulas has ceased, or they can only be obtained by a large "outlay. On the other hand, the dépôt is enlarged, and police make raids on every side, with "the view of forcing the Chinese to enter into fresh contracts, so that the wishes of planters may "be satisfied and officials enabled to share in the labourer's earnings. Towards such officials, "and the citizens of fortune who govern the dépôts, gain flows in a deep and rapid stream, as

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and 2 others declare that, when sick, they were not allowed to enter the infirmary, that they were chained, beaten and forced to continue labour; Ch'ien A-jung (錢阿榮) deposes, "when ill I was not allowed to cease labour; I was beaten and forced to resume "work." Ts'ui An (崔安) deposes, "for reporting myself sick, I was twice chained "and beaten." Ch'ên A-jung (陳阿榮) deposes, "during three years my eyes were diseased, "but I was never permitted to report myself sick." 'Han Chin (韓錦) deposes, "several "times when reporting sick, I was placed in irons and beaten. Once I was flogged so severely "that I vomited blood, and I was besides kept in chains during seven months." Li A-lai (李阿來) deposes, "when I reported myself sick I was constantly beaten. I was accused of "pretending to be ill." Ch'ü Tan-k'o (屈旦殼) deposes, "labourers who reported themselves "sick on account of sores on the feet were told by the master that such ailments could not be "regarded as sickness, and he also, seizing a stick, beat them indiscriminately." Ch'ên A-chin (陳阿金) deposes, "when I was sick and reported the fact to the overseer he accused me of "speaking falsely, and ordering four men to hold me down removed my trowsers, and flogged me "so severely that my flesh became lacerated. I then had to labour in irons, and at night, when "I returned, my wounds were rubbed with salt and lime-juice, causing a pain that almost killed "me." Li A-'hui (李阿會) deposes, "when, on the plantation, I was incapacitated for work "by sickness, four negroes were directed to hold me prostrate, whilst I was being flogged on my "naked person. Afterwards when ill in the Dépôt my elbow was broken by an overseer." Chou A-ting (周阿丁) deposes, "two men who suffered from sores on the head and were inca- "pacitated for severe labour asked to be permitted to perform a lighter class of work, and for so "doing the administrator chained their feet and beat them almost the death." Hsieh A-hsüan (謝阿選) deposes, "I have seen men flogged, forced to work in chains during the day and "placed in prison for reporting themselves sick; others too, natives of Tungkwan (東莞), I "saw who, having been flogged for reporting themselves sick, hanged themselves through fear "of being confined in the stocks." Wu Lien-shêng (吳聯勝) deposes, "I saw a sick man "who was unable to go out to labour, killed by the overseer." Huang A-tou (黃阿斗) deposes, "I saw a native of Hiangshan (香山), who had been severely beaten by the administrator "for reporting himself sick, hang himself on the same evening; I also was the witness of "the murder of a native of Hunan (湖南), by name Li (李), who had been flogged for "reporting himself sick. I saw, too, the suicide by drowning of a man named Chêng (鄭) who "when sick had been dragged out and flogged; and I know that two men, one a native of "Swatow, the other a native of Kwangtung, died in the infirmary from starvation." Wang A-shêng (王阿盛) deposes, "when repairing a cart-road my leg was fractured, and the surgeon "found it necessary to furnish me with a wooden limb. The master relieved me from all severe "labour but the administrator on one occasion ordered me to move some heavy stones, and as I "was unable to do so broke my wooden leg, and also, by a blow, removed a portion of my ear." Liang A-jên (梁阿壬) deposes, "when on the plantation we reported ourselves sick, a negress "was told to make water, and if we consented to drink it our statement was admitted, but if we "refused we were compelled to continue labour." Ch'ên A-fu (陳阿福) deposes, "one of my "arms was broken by the injury. The fracture was cured, but I was punished by the deduction "of nine months' wages." Li Cho (李卓) deposes, "for reporting myself sick the administrator

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"beat me, and chained my feet during three days, and withheld from me wages during eight "months." Huang A-man (黃阿滿) deposes, "when sick the surgeon incited the dogs to bite, "and beat us with rods." Yü A-t'ien (余阿田) deposes, "when so seriously sick that I was "unable to move, the surgeon in the first instance beat me before admitting me into the "hospital." Liu A-yao (劉阿耀) deposes, "when sick I was locked up in the infirmary, and "sometimes during a few days received no food whatever; but the surgeon never visited me." Yüan A-an (袁阿安) deposes, "when so sick that I vomited blood, the surgeon would not admit "me into the hospital." Kao A-tai (高阿代) deposes, "when I was sick, I received no medical "care."

XXXVIII.

What is the rate of mortality?

The census effected under the supervision of the Central Commission of Colonization applies to a period commencing in the 6th moon of the 27th year of Taokwang and terminating at the 7th moon of the 11th year of T'ungchih. The statistics show that during five years of this period —from the 28th year of Taokwang until the 2nd year of Hienfêng inclusive—no vessels conveying Chinese reached the island, and that during the 20 remaining years 114,081 landed, of whom, on the completion of the census, there remained 58,400.

Another Table prepared by the Commission shows the departure during 1872 and the first nine months of 1873 of 235 Chinese, being an annual average of 134. Assuming—to aid the calculation—that 571, the number arrived in the reign of Taokwang, were all enabled to leave, and bearing in mind that the departure of any men comprehended in even the first subsequent importations—those of the 3rd year of Hienfêng—could not commence before the 11th year of Hienfêng—producing at the above average, a total of departures for that and the eleven following years, of 1,608,—the entire number departed amounts to 2,179; and a deduction of these and of the surviving population shows that the deaths reached the aggregate of 53,502, in which, also, are not comprised the deaths during the voyages, which up to the same date—T'ungchih 11th year 7th moon—exceeded 15,000. All these, too, were young men, and their fates certainly merit compassion.

The facts of the Tables of the Central Commission only specifying the population surviving in the 11th year, and of no information being attainable, as to that successively existing at the end of each of the antecedent ones, and as to the augmentation effected during each, preclude any minute reply to the query.

XXXIX.

What have been the causes of death?

The excessive heat of the climate, the severity of the labour, and the scantiness of the food, have been the causes of a great mortality, through sickness; but the deaths from other causes have likewise been numerous. Yüan Kuan (袁觀) states in his petition, "the new

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"administrator was cruel as a wolf or a tiger and his heart was as venomous as that of a snake. "A certain Ch'ên A-tsao (陳阿灶) not being able to endure the ill-treatment jumped into a sugar "caldron; Lien A-hsing (連阿興) suffering from a bad leg and unable to work, on being forced "to labour hanged himself; Liu Pai-jên (劉百忍) was flogged by the administrator till he spat "blood and died; Hung A-fu (洪阿富), being unable to do the work allotted to him, ran away, "was brought back and at night was killed by the administrator; Chang A-ping (張阿丙), being "sick and unable to work, poisoned himself; Chou Shih-lan (周石蘭), 15 days after arrival, was "flogged by the administrator so severely that he died." Lin A-yu (林阿有) deposes, "last "year, Tsêng A-chi (曾阿基) was murdered, a crime for which no punishment could be "obtained." Ch'ên A-chi (陳阿吉) deposes, "on the plantation I saw three men commit "suicide, on account of a severe flogging which had been inflicted on them." Ch'ên Lin (陳林) deposes, "of ten men who were with me three killed themselves by hanging." Chou Liu (周六) deposes, "on the plantation ten men hanged themselves." Wên Ch'ang-t'ai (文長泰) deposes, "I saw nine men hang themselves, one man throw himself into a sugar caldron, and 12 "men die from the results of wounds—these festered and bred maggots." Ho Hsi (何錫) "deposes, "with me were 20 men; of these two hanged themselves, and four cast themselves "into a well." Liang En (梁恩) deposes, "with me were 15; of these four hanged them- "selves, one named Liang Pai-shêng (梁百勝) after being wounded on the head and body "by the administrator, was attached by the latter to his horse's tail and dragged back to the "quarters. He proved to be then dead, and his body was cast upon the dung-hill." Ch'ên "A-ying (陳阿應) deposes, "I have seen many hang themselves. In the boiling house I "have seen two who hanged themselves by one rope—others I saw who had died in a similar "manner in the privies and dormitories." Jung A-ts'ai (容阿彩) deposes, "a man who ran "away and was captured was beaten by the administrator with a thick stick so severely that he "died." Wên A-chao (温阿照) deposes, "I saw a man named A-lai (阿來) killed through "blows inflicted with a stick and a knife when in chains; I saw also another named A-san (阿三) "hang himself." Fêng A-hsiu (馮阿秀) deposes, "I saw five men hang themselves." Wu A-ch'ing (吳阿清) deposes, "of 50 men who were with me, only 25 survive. There were "suicides by drowning, hanging and cutting of the throat." Li Hui (李惠) deposes, "I saw two "Shuntêh(順德) men, by name Ch'ên (陳) and Liang (梁), who found the chastisements unendur- "able, poison themselves with opium. I saw also a Hakka hang himself." Lo A-fa (羅阿發) deposes, "I saw the administrator strike two men dead with a knife, and I also saw two men "who found the ill-treatment unendurable, hang themselves." Li Cho (李卓) deposes, "at the "end of the eight years I had seen six or seven men killed by violence, 13 men hang themselves, "and three men poison themselves." Lin A-i (林阿亦) deposes, "with me were 20 men, of "whom, finding the ill usage unendurable, two poisoned themselves, five hanged themselves and "four cut their throats." Lo A-ch'ang (羅阿昌) deposes, "with me were 24 men, of whom two "hanged themselves." Lin A-t'ai (林阿泰) deposes, "I saw four men hang themselves to- "gether, of whom two died. The cause was that they found the ill-treatment unendurable." Liang A-lin (梁阿林) deposes, "I saw three men hang themselves, ten die from wounds and "four poison themselves with opium." Wên Man (温滿) deposes, "I saw on the plantation the "suicide of two men by hanging; one was named A-ch'ih (阿遲) and the other A-kuan (阿官).

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"labour and the chastisement unendurable." Ch'ên A-pao (陳阿保) deposes, "on the plantation "two Cantonese who could not endure the chastisement hanged themselves, and of 31 of my "gang, two hanged themselves, and three swallowed opium, owing to their finding the ill "treatment unendurable." Li Shun (黎順) deposes, "one of the men with me, a native of "Hweichow (惠州) killed himself on account of the cruelty." Han Yen-p'ei (韓炎培) deposes, "of 50 men with me three drowned themselves and two hanged themselves, on account of finding "the cruelty unendurable, and 13 died from the effects of wounds." Ch'ên Chung-hsiu (陳忠秀) deposes, "with me were 22 others, of whom two hanged themselves, and two poisoned themselves "with opium, owing to finding the cruelty unendurable. Besides four died from the effects of "wounds." Yang Shih-fêng (楊石鳳) deposes, "with me was a native of Polo (博羅), by "name Hsien Shih (洗士); he was so wounded by blows that the pain was unendurable. The "surgeon gave him some aperient medicine, which he vomited, and he afterwards hanged "himself. A native of Kweishan (歸善), by name Ch'ên A-ts'ai (陳阿才), after being flogged, "was ironed on both feet and forced to work, and fell into a lime-pit, in which he died. The "deaths from wounds and in the hospital, of which I have been a witness, have exceeded 100." Li Hsin (黎信) deposes, "I saw a native of Hweichow (惠州), by name Lin A-ssŭ (林阿四), hang "himself, being unable to endure the pain resulting from a flogging. The 20 men of the same "gang laid a charge before the officials, but the latter gave no heed to the complaint; and the "master having brought them back placed them in irons, so that the accusation could not be "renewed." Li A-wu (李阿伍) deposes, "I saw three men drown themselves, and five hang "themselves, on account of the cruelties to which they were being subjected." Chêng A-chu (鄭阿柱) deposes, "I saw Li A-san (李阿三) killed by blows because being sick he was unable "to move certain bundles of cane. I also saw two men hang themselves, and one man jump into "a well." Huang A-yung (黃阿榕) deposes, "on the plantation, I saw Ch'ên A-kou (陳阿狗) "and Hsien Yü-tsai (鹹魚仔) hang themselves, being unable to support the chastisement. One "hanged himself on a tree, the other in the dormitory." Chiang A-lin (姜阿麟) deposes, "I saw "one Cantonese hang himself, and four men poison themselves with opium." Yu A-ssŭ (游阿四) deposes, "I saw one of my gang, a native of Fukien, by name Ch'ên A-kou (陳阿狗), "so beaten with a stick, for weakness in the legs, that he died in seven days. I also saw the suicide "by hanging of three natives of Nanhai (南海)." Liu A-jui (劉阿瑞) deposes, "I saw two "men hang themselves." Ch'ên I (陳翼) deposes, "I saw three men hang themselves and one "drown himself." Chêng A-t'u (鄭阿土) deposes, "I saw ten men so wounded by blows that "in a few days they died, and other four who were unable to endure the cruelty hang them-"selves." Liang A-hsin (梁阿新) deposes, "on the plantation, I saw three men who were "unable to endure the cruelty cut their throats." Chang Erh (張二) deposes, "of those with me, "two drowned themselves and three swallowed opium." T'an Yu (譚友) deposes, "I saw a "native of Sinning (新甯), by name Huang A-yang (黃阿養), killed by blows dealt by the "administrator." Wu A-i (吳阿義) deposes, "on the plantation I saw one man drown himself, "three men poison themselves with opium and one man hang himself." Liu A-ssŭ (劉阿四) deposes, "I saw the death in the infirmary of ten men, who had been wounded; it took place "within one or two days after infliction of the blows. I also saw the suicide of a native of "Fukien, who was driven to the act by the cruelty." Sun Kuan-fu (孫觀福) deposes, "of those

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" the chastisement, hang himself." Li Shun (李順) deposes, "of those with me, I saw 11 commit " suicide." Ho P'ei-ch'i (何沛麒) deposes, "I saw one man hang himself, one man leap into " a well, and another, an old weak man who had allowed a certain field implement to fall into a " pool, killed by blows dealt by the administrator." P'ang A-tung (龐阿東) deposes, "of those " with me, one hanged himself, and another died from the effects of a severe flogging." Lai Ying-lai (賴英來) deposes, "I saw three poison themselves with opium, and two men drown " themselves." Chang Hui (張會) deposes, "I saw two men hang themselves, and one man " poison himself with opium." Huang A-hsing (黃阿杏) deposes, "of 40 men with me, three were " so severely beaten that one died on the spot, and the two others afterwards, in the infirmary." T'ang Shih-chu (唐石柱) and 1 other depose, that on the premises of the Railway by which they were employed they saw two men poison themselves with opium, and one man hang himself—the suicides being due to their inability to support the ill usage. Ho A-wei (何阿魏) and 1 other depose, that they saw two men poison themselves with opium. Liu Wu (劉五) deposes, "I saw three men " hang themselves, one man poison himself with opium, and a third, who had been beaten by an " overseer, jump into a well." Li Shan (李山) deposes, "I saw three men poison themselves with " opium, and other three hang themselves." Wu A-yao (伍阿耀) deposes, " of 20 men with me, " three poisoned themselves with opium." Chu A-fu (朱阿福) deposes, "I saw a native of " Hiangshan (香山), by name Ch'ên A-wang (陳阿旺), so severely beaten that he drowned " himself. Besides there were other seven who committed suicide." Kuang K'uan (鄺寬) deposes, " on the plantation three men hanged themselves, and three men poisoned themselves with " opium." Wang Ching (王敬) deposes, " I saw three men drown themselves." Ch'ên Yu (陳有) deposes, " I saw two men hang themselves, and three men drown themselves, on account of their " being unable to endure the cruelty." Têng Shêng (鄧勝) deposes, "I saw six men poison themselves with opium." Li Ts'ai (李才) deposes, " of those with me one man hanged himself " on account of having been severely beaten by the overseer." Chung Lai (鍾來) deposes, " an " old man who could not move a heavy weight was killed by blows dealt by an overseer." Liu A-shih (劉阿石) deposes, " a native of Hweichow (惠州), by name Chu A-mu (朱阿木), was so " severely chastised by an overseer that he drowned himself." Huang Hsing (黃興) deposes, " I saw three newly arrived Chinese killed by blows from the overseer, who declared that they " could neither speak nor work." Lin Tzŭ-yu (林滋有) deposes, "I saw a native of " Yangkiang (陽江) hang himself with a handkerchief, being unable to endure the hard- " ship." Liang A-shêng (梁阿盛) deposes, " I saw a Cantonese, by name Li (李), hang himself " because he had been chained and confined in the prison though guilty of no offence." Liang A-shêng (梁阿盛) deposes, " I saw a Cantonese, by name Ch'ên A-kuang (陳阿光), hang himself " when wearing chains, through inability to endure the ill treatment." Huang A-t'i (黃阿體) deposes, " I saw three men wounded by blows and removed to the infirmary; in it they died " on the following day." Huang A-ch'ang (黃阿昌) deposes, " I saw Wang A-kuang (王阿光) " hang himself after having been ironed and severely beaten." Ch'ên A-hung (陳阿紅) and 3 others depose, " I saw a man named A-chi (阿紀) so severely struck on the neck " by the negro overseer that he died in three days." Chou A-hsing (周阿興) deposes, " I saw a " native of Hweichow (惠州), by name Chang (張), poison himself with opium, through inability " to endure the ill treatment." Chiang Li-shih (蔣禮實) deposes, " I saw three men hang

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"themselves." Lü A-liang (盧阿良) deposes, "of the men with me, a native of Kweishan "(歸善), by name A-yin (阿寅), was killed by blows, another, a Hakka, by name Ma Tsai (馬仔), "hanged himself, and a third, A-t'ou (阿透), poisoned himself with opium." Chang Chêng-kao (張正高) deposes, "I saw Wang A-chiang (王阿江) hang himself in his chains, on account of "the frequency of the floggings inflicted. Of those with me seven men, who had been gravely "wounded by blows, died from disease thus produced." Lin Kuei-hsing (林貴興) deposes, "I saw a native of Polo (博羅), by name Huang (黃), killed by blows." Ho A-ch'êng (何阿成) deposes, "I saw a man jump into a sugar caldron, two men hang themselves, and another wearing "chains throw himself into a well." Hsiao To (蕭多) deposes, "of those with me, one man "hanged himself, as he was chained and constantly beaten." Lo Fu (羅福) deposes, "of those "who came with me, one man hanged himself, and another died from the effects of a severe "chastisement." Liu A-sung (劉阿松) deposes, "of those with me two hanged themselves, and "two poisoned themselves with opium." Wên Erh-chang (溫二章) deposes, "I saw one man "poison himself with opium, and one man hang himself, being unable to endure the hardships." Lai A-hsi (賴阿携) deposes, "I saw six men hang themselves." Yeh Jui-chang (葉瑞章) deposes, "I saw a native of Sinhwei (新會) killed by blows dealt by the administrator." Chiang A-t'êng (江阿騰) deposes, "I saw 12 men hang themselves." Huang Ch'ên-fu (黃陳福) deposes, "I saw one man killed by blows." Ch'ên Hua (陳華) deposes, "on the plantation I "saw a native of Sinhwei (新會), by name Huang A-fang (黃阿芳), who worked in the sugar "storehouse and who was detected asleep, beaten and bitten to death by dogs incited to attack "him. Another man poisoned himself with opium." Liao Chün (廖均) deposes, "I saw a "native of Nanhai (南海), by name Lin (林), hang himself." Huang Chien-hsing (黃建馨) deposes, "of those with me, three men committed suicide." Liu Chin-hsiu (劉錦秀) deposes, "I saw two men hang themselves." Ch'ien Yu (錢有) deposes, "I saw 28 men hang themselves "through inability to endure the cruelty." Wên A-an (溫阿安) deposes, "I saw three men "drown themselves." Hung A-i (洪阿異) deposes, "I saw the Cantonese Liang A-hua (梁阿華) and 11 others poison themselves with opium." Hsieh A-hsing (謝阿興) deposes, "I saw a native of Hweichow (惠州), by name Lin A-fa (林阿發), and a native of Hiangshan "(香山), by name A-man (阿滿), killed by blows. Another man, too, who was placed in foot "irons, wounded on the legs by blows, and deprived of food, hanged himself." Chou A-chiu (周阿九) deposes, "of 20 men with me, six died from blows which caused wounds and vomiting "of blood." Liang A-hua (梁阿華) deposes, "of the 42 men with me, two threw themselves into "the mountain ponds, two were killed by blows dealt by the administrator, and one by blows "inflicted by the surgeon." Tsêng A-ming (曾阿明) and 3 others depose, "of 13 men with me, "six died from the effects of wounds and bad medical treatment." Ch'ên A-shên (陳阿深) deposes, "I saw one man who had been wounded by blows die on the following day, one man who was beaten "and cruelly used drown himself, and two hang themselves." Ho A-hsien (賀阿先) deposes, "I "saw a native of Hweichow (惠州), named Liu A-hsiu (劉阿秀), so wounded by blows dealt with "a stick that he died on the following day." Ho A-chien (何阿堅) and Têng San (鄧三) declare that they each saw on plantations two men hang themselves, who were unable to endure the cruelty. Mai A-an (麥阿安) deposes, "I saw, on the plantation, two men hang themselves. "Their terms of service had expired and they were not permitted to leave." Huang-A-yu

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necessity of either a renewal of contract or of labouring on public works was laid down as long ago as 1860, in articles 7 and 18 of the Decree of that year.

(Note by translator :—

The term "temporary guardianship" referred to in the query is used in the Decree of the Colonial Government, a portion of the purport of which is quoted under query 25, and which is more fully described in the memorandum concerning Legislation. The guardianship meant temporary continued use of the services of the Chinese in question, on condition of the employer guaranteeing their appearance whenever it might be called for, and their retention in one locality until "the Government can ascertain whether they are deserters or whether they have "been guilty only of the fault of neglect to re-contract themselves in a regular "manner."

As shown in the memo. referred to, the guardianship ceased on the 14th September 1872, and was replaced by the re-contracting prescribed in the Regulations of that date.)

"Guardianship" by the original employer, being prolonged service for his benefit, was not likely to be acceptable to those interested. As shown by the petition of Jên Shih-chên (任世貞) and two others, the enforcement of contracts for eight years entered into for five, is regarded as a wrongful exaction of three years' labour, and a few other extracts will prove the feelings of dislike in regard to any such prolongation entertained by the Chinese, and the prejudicial nature of such a tutelage when imposed. Thus Tsêng A-shih (曾阿十) deposes, that 40 men who had completed their contracts were forced to labour in chains; P'ang A-tung (龐阿東), that at the end of the eight years if a new contract was refused, they were beaten and chained; Lin Tzŭ-yu (林滋有), that a native of Nanhai (南海) who declined to renew his contract was so injured by thrusts with a stick in the chest inflicted by the administrator that he died in a few days; and Liang A-shêng (梁阿盛), that a Cantonese, by name A-chi (阿寄), who declined to renew his contract was so injured by thrusts that he died in a few days.

The institution known as the "dépôt" is named in the depositions in various ways, but these different appellations, ten in number, have reference to one establishment. This originally was created for the detention of runaway slaves, and its jurisdiction was subsequently extended to the similar cases of Chinese. To the latter were added, later, all not possessing Letters of Domicile and Cedulas, whether the absence of these documents be due to refusal of them, or loss, or withdrawal by violence; and the general cessation of their issue which has taken place of recent years has rendered liability to such arrest universal. The Chinese who declines to renew his engagement with his original employer, and who, despite the chains and the whip, in so many cases resorted to, persists in his refusal, is delivered to the dépôt to labour on Government work without remuneration until through its intervention a new contract is enforced,—a process constantly repeated and calculated of course to prevent any return home and any attempt to gain a livelihood independently, and resulting in exposing to the danger of being handed over to the cruelties of the plantation,—the extremest,—men who, hitherto employed in other services, have escaped them.

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"trator, the fall causing the injury to resume its original proportions." Ch'ên A-pao (陳阿保) deposes, "ten old men who were cripples were sent away to the country two days ago on account "of the visit of the Commission being expected. My brother who, holding a cedula, "is unjustly confined in the dépôt, was also sent away." Yu A-ssŭ (游阿四) and 8 others depose, "we originally slept on the ground and our feet were in consequence swollen. On "the visit of the Commission being expected, wooden beds and clothing were issued." Li A-nêng (李阿能) deposes, "these new clothes were issued yesterday; the men in chains were also "released yesterday." Lin A-kọu (林阿狗) and 21 others depose, "when the visit of the "Commission was expected clothing was issued to us." Lin Erh (林二) deposes, "when the "visit of the Commission was expected rations of rice and new clothing were issued." Liu A-hsi (劉阿喜) deposes, "when the visit of the Commission was expected rations of rice were issued."

XLVIII.

Have the Chinese examined talked freely?

The men examined in the dépôts, prisons and plantations were selected by the Commission from a number who, in the first instance, were designated by the functionaries of the respective establishments. Besides, on the plantations, in most instances the enquiry had to be conducted under the eyes of the administrator or overseers. Their presence tended to produce intimidation and reticence; nevertheless some did not hesitate to recapitulate their sufferings, to boldly exhibit their scars, and to hold forward the raw bananas, dried beef and maize which were their food.

The purport of the several depositions, too, constitutes a reply to the point raised in the query.

[The author of the Report interprets the query to possibly refer to the permitted attitude of Chinese under examination by Cuban authorities, as well as to their demeanour during the interrogation by the Commission, and consequently appends the following extracts:—]

Shên San-wên (沈三穩) deposes, "a negro who had committed a theft having accused "me of being an accomplice, I was imprisoned and sentenced to seven years' confinement. "During the trial the official would not allow me to enter into any details. The term for "which I was sentenced has expired but I am still in prison." Lai A-hsi (賴阿携) deposes, "a native of Polo (博羅), by name Huang A-kuang (黃阿光), having been beaten and "forced to work in chains hanged himself during the night. We laid a charge before "the neighbouring officials. They, however, gave no heed to our complaint and the body was "buried without any enquiry being made. We, 23 in all, in view of this wrong renewed the "accusation before an officer of higher rank. The administrator followed us and reached the "office at the same time as we did. A prolonged conversation took place between him and the "official, at the conclusion of which the latter enquired who of us were willing to return to the "plantation, giving an assurance that we would not be chastised; and he added that those who

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" refused would be sold to other plantations. Ten accepted the second alternative; I and 12 others " went back to the plantation." Kuan A-hsi (關阿喜) deposes, " our master having dealt a blind " man blows with his fist and wounded his head, we laid a charge before the officials. The latter " however refused to accept our complaint and placed us in prison." Han Yen-p'ei (韓炎培) deposes, " on my asking the administrator for eight months' wages (due me) he beat me. I " preferred a charge before the officials; when the latter sent for him he declared that I had stolen " straw from the stable, and I was at once imprisoned." The petition of Tsêng Jui-t'o (曾瑞託) and 4 others states, " after the 7th year of HIENFÊNG, the officials, corrupted by the planters, " endeavoured to coerce all of us, irrespective of the date of arrival or the possession of papers, to " enter into fresh contracts, disregarding all remonstance."

XLIX.

HAVE THE SPANIARDS OFFERED ALL NECESSARY FACILITIES?

With one exception, the Commission is indebted to the instructions issued by the late Captain General, Lieut. General JOVELLAR, for its admission into the dépôt, prison, hospital and barracoon of Havana, into the dépôts, prisons and hospitals of the other towns visited, and into the plantations at which it prosecuted its enquiry. At the time of quitting Havana for the interior, letters addressed to the Sub-Commissions of Colonization established in the chief town of each jurisdiction, were received from Señor ZULUETA, then Governor now Mayor of Havana, and President of the Central Commission of Colonization. The exception indicated was Las Cañas, the plantation of Señor POEY, visited by the Commission on the invitation of the owner.

At the other plantations the Commission was only received after arrangements had been entered into between the local official and the proprietor.

Whilst the interrogations were proceeding, representatives of the Government occasionally were present, but they in no way interfered.

No other facilities were afforded by Spaniards of any class.

L.

HAS THERE BEEN ANY INTERFERENCE OR INTIMIDATION?

The proceedings of the Commission within the dépôts, prisons and hospitals of Havana and the other cities were attended by no difficulties; but the depositions show that in the first of these establishments in expectation of the visits rations of rice, new clothing and even beds, were supplied to the occupants.

The hours of visiting the plantations were settled in advance by the local officials, and by them the Commission was occasionally accompanied.

To the proprietors of some plantations the Commission is indebted for the providing of carriages and hospitality, but the request that the common labourers should be produced for

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Liang En (梁恩) déclare: "l'administrateur battit jusqu'à mort un certain Liang Yu-shêng "(梁有勝); quatre d'entre nous, moi compris, adressirent une plainte aux Autorités mais l'agent "du propriétaire leur ayant fait cadeau de $ 100 et l'administrateur de 4 noirs, elles ne firent "aucune attention à notre accusation. Je fus renvoyé sur la plantation où il me fallut travailler "avec les fers aux pieds pendant une année entière. Ensuite on me transporta à une autre "plantation appartenant au même propriétaire où je terminai mes 8 ans de service. Je demandai "alors un certificat de libération et attendis une année travaillant comme auparavant; je partis "alors avec l'intention d'obtenir justice des Autorités, mais le commis de la plantation donna de "l'argent aux gardes et je fus arrêté sous prétexte que je voulais m'enfuir. On me reconduisit à "la plantation où il me fallut travailler pendant quatre mois avec les fers aux pieds."

Lin A-san (林阿三) déclare: "on me fouettait sans aucune raison, cela dépendait du "caprice du maître selon qu'il était de bonne ou mauvaise humeur. Je n'osais pas me plaindre "aux Autorités car cela n'aurait eu d'autre résultat que de me faire enchaîner et fouetter avec "plus de sévérité encore."

Wang A-ts'ai (王阿才) déclare: "on me faisait constamment des blessures en me frappant "et je résolus de me plaindre aux Autorités, mais on eut connaissance de mon intention et on me "fit travailler avec les fers aux pieds pendant neuf mois."

Li Tai (李帶) déclare: "l'un de nous qui parlait espagnol réprésenta au maître que les "chinois se nourrissaient de riz et qu'à Macao il avait été convenu qu'on ne travaillerait pas le "dimanche, que l'on agissait ici tout différemment. Le maître s'emporta trouvant ces paroles par "trop osées et après notre comarade tomba malade et fut envoyé à l'hôpital où il mourut quelques "jours après."

Chou Tê-hua (周德華) déclare: "on me cassa un doigt pour la seule raison que je ne "pouvais pas parler espagnol."

Ch'ien A-shêng (錢阿生) déclare: "mon maître était méchant, il nous battait constam-"ment et il me cassa le bras gauche de sorte que je ne puis plus m'en servir pour travailler."

Li Chao-ch'un (李肇春) et 165 autres écrivent dans leur pétition: "nos compatriotes "sont massacrés, se coupent la gorge, se noient, &c., et ces événements ne sont pas portés à la "connaissance des Autorités ou, si cela a lieu, on fait une courte enquête et tout est dit. Il est "possible que sur la plantation il se trouve un ami ou un parent de la victime, mais bien qu'ayant "tout vu il n'ose pas paraître comme témoin, car s'il l'osait son existence ne serait pas de longue "durée."

XV.

PENDANT LA DURÉE DE L'ENGAGEMENT, QUEL TEMPS LE COOLIE A-T-IL À SA DISPOSITION ET COMMENT PEUT-IL S'EN SERVIR? S'IL VEUT L'EMPLOYER À SON PROFIT, LA LOI LE PROTÈGE-T-ELLE?

L'art. 10 de la Convention d'Emigration de 1866 stipule que sur sept jours il doit y en avoir un de repos et que le Coolie ne pourra être forcé à travailler plus de 9 heures ½ sur 24, tout travail obligatoire en plus étant défendu. La 5e clause des contrats employés dans la 10e année

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2°. Cicatrices sur la tête :—

Ch'ü A-ping . . . . (區阿炳)　　Mu Yang-chiao . . . (繆陽嬌)
Shên T'ai-kao . . . . (沈泰高)　　Ch'ên A-shên . . . (陳阿深)

3°. Cicatrices sur la tête et la face :—

Chu Ts'ai-fang . . . (朱村房)

4°. Cicatrices sur la tête et les bras :—

Ho A-fa . . . . . (何阿發)

5°. Cicatrices de blessures faites par eux-mêmes en essayant de se couper la gorge dans le désir de la mort :—

Huang A-ping . . . (黃阿炳)　　Lin Lun-mei . . . . (林輪美)
Ch'ü Tan-k'o. . . . (屈但壳)

6°. Blessures sur le corps, pas encore fermées :—

Wu A-ch'in . . . . (伍阿琴)　　Lan A-mu . . . . . (藍阿穆)

7°. Blessures sur la tête, pas encore fermées :—

Chang Shêng . . . . (張　生)　　Yü A-t'ien . . . . . (余阿田)

8°. Blessures sur la face, pas encore fermées :—

Wu A-fang. . . . . (吳阿芳)

9°. Blessures sur la poitrine, non encore fermées :—

Ch'ên Chung-hsiu . . (陳忠秀)

10°. Blessures sur les jambes et cuisses, non encore fermées :—

Wang Ta-ch'êng . . . (王大成)　　Ch'ên I-yu . . . . . (陳乙有)
Ts'ai A-lu . . . . . (蔡阿魯)　　Ch'ü Tsu-k'ang . . . (區祖康)
Lin Tzŭ-yu . . . . (林滋有)　　Li A-lü . . . . . (李阿呂)

En outre :—

Liang A-yu (梁阿有) n'avait plus d'oreille gauche, son maître la lui ayant coupée de propos délibéré.

Huang A-shêng (黃阿盛) avait perdu un morceau de l'oreille.

Li A-ta (李阿達) avait perdu la vue, ses yeux étant devenus malades aussitôt après une bastonnade de 200 coups.

Liang A-hua (梁阿華) avait un œil endommagé.

Ch'ên P'ei-ch'ang (陳佩長) avait perdu 2 dents.

Le *hsiu-ts'ai* Ch'ên Shao-yen (陳少巖), Li A-hui (李阿會), Yüan Ai-shan (袁藹山) et Ch'ên A-hai (陳阿海) avaient le bras cassé.

Lo kuan-hsiu (駱觀秀) était invalide de la main droite par suite d'un coup de couteau reçu entre le pouce et l'index.

Liu A-lin (劉阿林) avait perdu 4 doigts qu'on lui avait coupés de propos délibéré.

Li Hung (李洪) et Li Ho (李河) avaient les doigts des pieds et des mains cassés.

Lu Shêng-pao (盧盛保) avait une jambe cassée.

Wu A-kuang (吳阿光) avait une cheville du pied hors d'usage, résulat des fers qu'il avait portés, et Hsü A-fên (許阿芬) était invalide des pieds pour le même motif.

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